

		related transactions or from the same facts. In support of this motion, Respondent offers a short declaration of counsel which states only that Respondent is facing criminal charges based on "similar factual allegations." (ROA 38, Bohm Decl., ¶ 3, emphasis added.) The Petition (ROA 2) in the instant action alleges causes of action against Respondent for undue influence, financial elder abuse, and intentional interference with expected inheritance. Such causes of action concern Respondent's actions toward the decedent with regard to the decedent's estate plan. The criminal action involves insurance fraud which (presumably) concerns Respondent's actions toward the insurance company with regard to decedent's insurance policy. While the two actions might concern "similar" facts (e.g., they both involve allegations of moral turpitude), Respondent has not shown that they involve the same or related transactions or facts. Furthermore, since Respondent has not offered any information as to the facts involved in the criminal proceeding, the court cannot begin to weigh the first and third factors of <i>Avant!</i> as set forth above. In her Reply, Respondent argues that Petitioner's discovery evidences an overlap between the two actions. However, the discovery appears to seek information relevant to the instant motion to stay. The discovery might also reveal that Petitioner intends to use the evidence obtained in the criminal action in the instant probate proceeding. However, such is not grounds to stay the instant probate proceeding. Respondent also argues in Reply that Petitioner has failed to show prejudice resulting from a stay. However, Petitioner does not have the burden to make such a showing. Moving party bears the initial burden to prove entitlement to the relief requested. (Evid. Code § 500.) Respondent has not met that burden. Counsel for Petitioner is ordered to give notice of this ruling. .
2	<u>Worthy-Trust</u> <u>30-2021-01211884</u>	MOTION TO BE RELIEVED AS COUNSEL (ROA 631) Attorney Stephen P. Shepard seeks to be relieved as counsel for Susan K. Worthy. An attorney's right to withdraw as counsel is conditioned upon compliance with California Rules of Court, rule 3.1362. When representing an estate representative or other fiduciary,

		withdrawal is further conditioned upon compliance with Orange County Local Rule 601.21. Counsel has fully complied with California Rules of Court, rule 3.1362 and does not represent a fiduciary. On 1/27/26, Susan K. Worthy filed an Objection to this motion. While Ms. Worthy appears to have many grievances with regard to Mr. Shepard's representation of her, such grievances only further support the need to end the attorney-client relationship. Moreover, Ms. Worthy's objections appear to be primarily against the statements made in the moving papers. She does not appear to object to Mr. Shepard being relieved as counsel. Ms. Worthy further requests that the court order Mr. Shepard to turn over the client file to her in paper format, as opposed to the flash drive she has already received. Pursuant to California Rules of Professional Conduct, rule 1.16(d), Mr. Shepard must return the client file to the client in the format in which it exists. To the extent the client file was maintained in paper format, the physical papers should be handed over to the client. To the extent the client file was maintained electronically, the flash drive is sufficient. Mr. Shepard is not required to print any electronic documents at his own expense for the client's convenience. Based on the foregoing, the court finds good cause to GRANT the motion to be relieved. Withdrawal is effective upon filing the proof of service of the signed Order Granting Attorney's Motion to Be Relieved as Counsel. .
3	Rodman-Trust 30-2025-01499532	MOTION TO COMPEL FURTHER RESPONSES TO REQUESTS FOR PRODUCTION OF DOCUMENTS (ROA 51) Petitioner Kevin Craige Kruse moves for an order compelling Respondent Kara Kruse Lee to provide further responses to Requests for Production of Documents, Set One, demand nos. 5, 6, and 17. Respondent has filed a declaration demonstrating that supplemental responses were served on 8/20/26. (ROA 122.) The supplemental responses appear to comply with the Code, rendering the motion to compel moot.